

Jagdish Gaur v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 14 February 2025 · 2025:AHC:21908-DB · Writ-C No. 4216 of 2025 · **Writ disposed of; respondent no.2 to examine connection application in two months.**

HEADNOTE

A writ seeking grant of an electricity connection was not decided on merits. The Division Bench held that the application could more appropriately be examined by the second respondent under the U.P. Electricity Supply Code, 2005, after notice to the private respondent, and directed that exercise to be completed within two months.

FACTUAL SUMMARY

Jagdish Gaur filed a writ at the Allahabad High Court seeking grant of an electricity connection. Respondents included the Managing Director of Purvanchal Vidyut Vitran Nigam Ltd. and a private respondent (respondent no.4). The Division Bench did not go into the connection claim on merits, treating it as a matter for the second respondent under the Supply Code after notice to the private respondent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new-connection

HOLDING

An application for grant of an electricity connection is to be examined by the concerned licensee officer under the applicable provisions of the U.P. Electricity Supply Code, 2005, after notice to the affected private party, rather than in writ. The petitioner was directed to approach respondent no.2, who shall examine the claim in accordance with law within two months. ¶ 1

FLAG no clause numbered; order refers only to applicable provisions of the 2005 Code

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ seeking grant of an electricity connection was not decided on merits. The Division Bench held that the application could more appropriately be examined by the second respondent under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO ELECTRICITY CONNECTION

Merits of the connection application left to respondent no.2 under the Supply Code, after notice to private respondent no.4. ¶ 1